

of political philosophy; it is a fundamental prohibition plainly established by the decisions of this Court.

A unanimous Court, including Mr. Chief Justice Taft, Mr. Justice Holmes, and Mr. Justice Brandeis stated:

"The general rule is that neither department [of Government] may . . . control, direct or restrain the action of the other." *Massachusetts v. Mellon*, 262 U. S. 447, 488 (1923).

Similarly, in *O'Donoghue v. United States*, 289 U. S. 516, 530 (1933), the Court emphasized the need for each branch of Government to be free from the coercive influence of the other branches:

"[E]ach department should be kept completely independent of the others—independent not in the sense that they shall not cooperate to the common end of carrying into effect the purposes of the Constitution, but in the sense that the acts of each shall never be controlled by, or subjected, *directly or indirectly*, to, the coercive influence of either of the other departments."

In *Humphrey's Executor v. United States*, 295 U. S. 602, 629–630 (1935), the Court again held:

"The fundamental necessity of maintaining each of the three general departments of government entirely free from the control or coercive influence, *direct or indirect*, of either of the others, has often been stressed and is hardly open to serious question. So much is implied in the very fact of the separation of the powers" (Emphasis supplied.)

Consistent with the principle of noncoercion, the unbroken practice since George Washington with respect to congressional demands for White House papers has been, in Mr. Chief Justice Taft's words, that "while either house [of Congress]

"evil" of "executive control of legislative behavior" (Emphasis supplied.)